

# The Terrorist And Disruptive Activities (Prevention) Act, 1987

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Union of India - Act

The Terrorist And Disruptive Activities (Prevention) Act, 1987

UNION OF INDIA

India

The Terrorist And Disruptive Activities (Prevention) Act, 1987

Act 28 of 1987

Published on 1 January 1987

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The Terrorist And Disruptive Activities (Prevention) Act, 1987

(28 of 1987)

186.

An Act to make special provisions for the prevention of and for coping with, terrorist and disruptive activities and for matters connected therewith or incidental thereto.

Be it enacted by Parliament in the Thirty-eighth Year of the Republic of India as follows:

Part I ? Preliminary

1.

Short title, extent, application, commencement, duration and savings

(1)

This Act may be called The Terrorist and Disruptive Activities (Prevention) Act , 1987.

(2)

It extends to the whole of India, and it applies also,

(a)

to citizens of India outside India;

(b)

to persons in the service of the Government, wherever they may be; and

(c)

to persons on ships and aircraft registered in India, wherever they may be.

(3)

Sections 5, 15, 21 and 22 shall come into force at once and the remaining provisions of this Act, shall be deemed to have come into force on the 24th day of May, 1987.

(4)

It shall remain in force for a period of [eight years]

[Substituted by Act 43 of 1993, Section 2, for "six years" (w.e.f. 22.5.1993).]

from the 24th day of May, 1987, but its expiry under the operation of this sub-section shall not effect,

(a)

the previous operation of, or anything duly done or suffered under, this Act or any rule made thereunder or any order made under any such rule, or

(b)

any right, privilege, obligation or liability acquired, accrued or incurred under this Act or any rule made thereunder or any order made under any such rule, or

(c)

any penalty, forfeiture or punishment incurred in respect of any offence under this Act or any contravention of any rule made under this Act or of any order made under any such rule, or

(d)

any investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment as aforesaid,

and any such investigation, legal proceeding or remedy may be instituted, continued or enforced and any such penalty, forfeiture or punishment may be imposed as if this Act had not expired.

2.

Definitions

(1)

In this Act, unless the context otherwise required,

(a)

abet, with its grammatical variations and cognate expressions, includes,

(i)

the communication or association with any person or class of persons who is engaged in assisting in any manner terrorists or disruptionists;

(ii)

the passing on, or publication of, without any lawful authority, any information likely to assist the terrorists or disruptionists and the passing on, or publication of, or distribution of, any document or matter obtained from terrorists or distributionists;

(iii)

the rendering of any assistance, whether financial or otherwise, to terrorists or disruptionists;

(b)

Code means the Code of Criminal Procedure, 1973 (2 of 1974);

(c)

Designated Court means a Designated Court constituted under section 9;

(d)

Disruptive activity has the meaning assigned to it in section 4, and the expression disruptionist shall be construed accordingly;

(e)

High Court means the High Court of the State in which a Judge or an Additional Judge of a Designated Court was working immediately before his appointment as such Judge or Additional Judge;

(f)

notified area means such area as the State Government may, by notification in the Official Gazette, specify;

(g)

public prosecutor means a Public Prosecutor or an Additional Public Prosecutor or a Special Public Prosecutor appointed under section 13, and includes any person acting under the directions of the Public Prosecutor;

(gg)

[ property means property and assets of every description, whether corporeal or incorporeal, movable or immovable, tangible or intangible and deeds and instruments evidencing title to, or interest in, such property or assets, derived or obtained from the terrorist Act and includes proceeds of terrorism;]

[Inserted by Act 43 of 1993, Section 3 (w.e.f. 22.5.1993).]

(h)

terrorist act has the meaning assigned to it in sub-section (1) of section 3, and the expression terrorist shall be construed accordingly;

(i)

words and expressions used but not defined in this Act and defined in the Code shall have the meanings respectively assigned to them in the Code.

(2)

Any reference in this Act to any enactment or any provision thereof shall, in relation to an area in which such enactment or such provision is not in force, be construed as a reference to the corresponding law or the relevant provision of the corresponding law, if any, in force in that area.

Part II ? Punishments For, And Measures For Coping With, Terrorist And Disruptive Activities

3.

Punishment for terrorist acts

(1)

Whoever with intent to overawe the Government as by law established or to strike terror in the people or any section of the people or to alienate any section of the people or to adversely affect the harmony amongst different sections of the people does any act or thing by using bombs, dynamite or other explosive substances or inflammable substances or fire-arms or other lethal weapons or poisons or noxious gases or other chemicals or by any other substances (whether biological or otherwise) of a hazardous nature in such a manner as to cause, or as is likely to cause, death of, or injuries to, any person or persons or loss of, or damage to, or destruction of, property or disruption of any supplies or services essential to the life of the community, or detains any person and threatens to kill or injure such person in order to compel the Government or any other person to do or abstain from doing any act, commits a terrorist act.

(2)

Whoever commits a terrorist act, shall,

(i)

if such act has resulted in the death of any person, be punishable with death or imprisonment for life and shall also be liable to fine;

(ii)

in any other case, be punishable with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life and shall also be liable to fine.

Form of Charge<sup>6</sup>

Form of Charge under section 3(1) and (2)

I,.....(name and office of the Designated Court, etc.),hereby charge you.....(name of the accused)as follows:

That you, on or about the.....day of....., at....., with intent to overawe the Government by law established/or to strike terror in the people or any section of the people (to wit)...../or to alienate any section of the people (to wit)...../or to adversely affect the harmony amongst the different sections of the people (to wit).....did an act (to wit)...../or thing (to wit).....by using bombs/or dynamite/or other explosive substances (to wit)...../or firearms/or other lethal weapons/or poisons/or noxious gases/or chemicals/or any other

substances (biological or otherwise) of a hazardous nature in such a manner as to cause/or as was likely to cause death of/or injuries to a person/or persons/or damage/or destruction of property/or disruption of supplies (to wit)...../or services essential to the life of the community and thereby committed an offence punishable under section 3(1) and 3(2) of the Terrorist Disruptive Activities (Prevention) Act, 1987, and within my cognizance.

And I hereby direct that you be tried by this Court on the said charge.

(3)

Whoever conspires or attempts to commit, or advocates, abets, advises or incites or knowingly facilitates the commission of, a terrorist act or any act preparatory to a terrorist act, shall be punishable with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life and shall also be liable to fine.

Form of Charge<sup>6</sup>

Form of Charge under section 3(3)

I,.....(name and office of the Designated Court, etc.),hereby charge you.....(name of the accused)as follows:

That you, on or about the.....day of....., at.....committed/or attempted to commit/or advocated/or abetted AB to commit/or incited CD to commit/or knowingly facilitated (state the modes and manner of facilitation) the commission of a terrorist act (to wit)...../or any other act (to wit).....which was preparatory to a terrorist act and thereby committed an offence punishable under section 3(3) of the Terrorist Disruptive Activities (Prevention) Act, 1987, and within my cognizance.

And I hereby direct that you be tried by this Court on the said charge.

(4)

Whoever harbours or conceals, or attempts to harbour or conceal, any terrorist shall be punishable with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life and shall also be liable to fine.

(5)

[ Any person who is a member of a terrorists gang or a terrorists organisation, which is involved in terrorist acts, shall be punishable with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life and shall also be liable to fine.

(6)

Whoever holds any property derived or obtained from commission of any terrorist act or has been acquired through the terrorist funds shall be punishable with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life and shall also be liable to fine.]

[Inserted by Act 43 of 1993, Section 4 (w.e.f. 22.5.1993).]

4.

Punishment for disruptive activities

(1)

Whoever commits or conspires or attempts to commit or abets, advocates, advises, or knowingly facilitates the commission of, any disruptive activity or any act preparatory to a disruptive activity shall be punishable with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life and shall also be liable to fine.

Form of Charge<sup>6</sup>

Form of Charge under section 4(1)

I,.....(name and office of the Designated Court, etc.),hereby charge you.....(name of the accused)as follows:

That you, on or about the.....day of....., at....., committed/or conspired to commit/or attempted to commit/or abetted AB to commit/or advocated/or advised/or incited CD to commit/or knowingly facilitated (to wit).....the commission of a disruptive activity (to wit)...../or an act (to wit).....which was preparatory to a disruptive activity and thereby committed an offence punishable under section 4(1) of the Terrorist Disruptive Activities (Prevention) Act, 1987, and within my cognizance.

And I hereby direct that you be tried by this Court on the said charge.

(2)

For the purposes of sub-section (1), disruptive activity means any action taken, whether by act or by speech or through any other media or in any other manner whatsoever,

(i)

which questions, disrupts or is intended to disrupt, whether directly or indirectly, the sovereignty and territorial integrity of India; or

(ii)

which is intended to bring about or supports any claim, whether directly or indirectly, for the cession of any part of India or the secession of any part of India from the Union.

Explanation. For the purposes of this sub-section,

(a)

cession includes the admission of any claim of any foreign country to any part of India, and

(b)

secession includes the assertion of any claim of determine whether a part of India will remain within the Union.

(3)

Without prejudice to the generality of the provisions of sub-section (2), it is hereby declared that any action taken, whether by act or by speech or through any other media or in any other manner whatsoever, which

(a)

advocates, advises, suggests or incites; or

(b)

predicts, prophesies or pronounces or otherwise expresses, in such manner as to incite, advise, suggest or prompt, the killing or the destruction of any person bound by oath under the Constitution to uphold the sovereignty and integrity of India or any public servant shall be deemed to be a disruptive activity within the meaning of this section.

(4)

Whoever harbours or conceals, or attempts to harbour or conceal, any disruptionist shall be punishable with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life and shall also be liable to fine.

5.

Possession of certain unauthorised arms, etc., in specified areas

.Where any person is in possession of any arms and ammunition specified in Columns 2 and 3 of Category I or Category III(a) of Schedule I to the Arms Rules, 1962, or bombs, dynamite or other explosive substances unauthorisedly in a notified area, he shall, notwithstanding anything contained in any other law for the time being in force, be punishable with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life and shall also be liable to fine.

6.

Enhanced penalties

(1)

If any person with intent to aid any terrorist or disruptionist, contravenes any provision of, or any rule made under the Arms Act, 1959 (

54 of 1959

), the Explosives Act, 1884 (

4 of 1884

), the Explosive Substances Act, 1908 (

6 of 1908

) or the Inflammable Substances Act, 1952 (

20 of 1952

), he shall, notwithstanding anything contained in any of the aforesaid Acts or the rules made thereunder, be punishable with imprisonment for a term which shall not be less than five years but which may extend to imprisonment for life and shall also be liable to fine.

(2)

For the purposes of this section, any person who attempts to contravene or abets, or attempts to abet, or does any act preparatory to the contravention of any provision of any law, rule or order, shall be deemed to have contravened that provision, and the provisions of sub-section (1) shall, in relation to such person, have effect subject to the modification that the reference to imprisonment for life shall be construed as a reference to imprisonment for ten years.

Form of Charge6

Form of Charge under section 6

I,.....(name and office of the Designated Court, etc.),hereby charge you.....(name of the accused)as follows:  
That you, on or about the.....day of....., at....., contravened the provisions of section (to wit).....of  
the Arms Act/or the Explosives Act/or the Explosive Substances Act/or the Inflammable Substances Act and thereby  
committed an offence punishable under section 6 of the Terrorist Disruptive Activities (Prevention) Act, 1987, and within  
my cognizance.

And I hereby direct that you be tried by this Court on the said charge.

7.

Conferment of powers

(1)

Notwithstanding anything contained in the Code or in any other provision of this Act, the Central Government may, if it  
considers it necessary or expedient so to do,

(a)

for the prevention of, and for coping with, any offence under section 3 or section 4; or

(b)

for any case or class or group of cases under section 3 or section 4;

in any State or part thereof, confer, by notification in the Official Gazette, on any officer of the Central Government,  
powers exercisable by a police officer under the Code in such State or part thereof or, as the case may be, for such  
case or class or group of cases and in particular, the powers of arrest, investigation and prosecution of persons before  
any Court.

(2)

All officers of police and all officers of Government are hereby required and empowered to assist the officer of the  
Central Government, referred to in sub-section (1), in the execution of the provisions of this Act or any rule or order  
made thereunder.

(3)

The provisions of the Code shall, so far as may be and subject to such modifications made in this Act, apply to the  
exercise of the powers by an officer under sub-section (1).

[7-A. Powers of investigating officers

[Inserted by Act 43 of 1993, Section 5 (w.e.f. 22.5.1993).]

.If an officer investigating an offence committed under this Act has reason to believe that any property in relation to  
which an investigation is being conducted is a property derived or obtained from the commission of any terrorist act and  
includes proceeds of terrorism he shall, with the approval of the Superintendent of Police, make an order seizing such  
property and where it is not practicable to seize such property, he may make an order of attachment directing that such  
property shall not be transferred or otherwise dealt with except with the prior permission of the officer making such  
order, or of the Designated Court and a copy of such order shall be served on the persons concerned:

Provided that the investigating officer shall duly inform the Designated Court within forty-eight hours of the attachment of  
such property and the said Court shall either confirm or revoke the order of attachment so issued.]

8.

Forfeiture of property of certain persons

(1)

Where a person has been convicted of any offence punishable under this Act or any rule made thereunder, the  
Designated Court may, in addition to awarding any punishment, by order in writing, declare that any property, movable  
or immovable or both, belonging to the accused and specified in the order, shall stand forfeited to the Government free  
from all encumbrances.

(2)

Where any person is accused of any offence under this Act or any rule made thereunder, it shall be open to the  
Designated Court trying him to pass an order that all or any properties, movable or immovable or both belonging to him,  
shall, during the period of such trial, be attached, and where such trial end in conviction, the properties so attached shall  
stand forfeited to the Government free from all encumbrances.

(3)

(a)

If upon a report in writing made by a police officer or an officer referred to in sub-section (1) of section 7, any Designated Court has reason to believe that any person, who has committed an offence punishable under this Act or any rule made thereunder, has absconded or is concealing himself so that he may not be apprehended, such Court may, notwithstanding anything contained in section 82 of the Code, publish a written proclamation requiring him to appear at a specified place and at a specified time not less than fifteen days but not more than thirty days from the date of publication of such proclamation.

(b)

The Designated Court issuing a proclamation under clause (a) may, at any time, order the attachment of any property, movable or immovable or both, belonging to the proclaimed person, and thereupon the provisions of sections 83 to 85 of the Code shall apply to such attachment as if such attachment were made under that Code.

(c)

If, within six months from the date of the attachment, any person, whose property is, or has been, at the disposal of the Government under sub-section (2) of section 85 of the Code, appears voluntarily or is apprehended and brought before the Designated Court by whose order the property was attached, or the Court to which such Court is subordinate, and proves to the satisfaction of such Court that he did not abscond or conceal himself for the purpose of avoiding apprehension and that he had not received such notice of the proclamation as to enable him to attend within the time specified therein, such property or, if the same has been sold, the net proceeds of the sale and the residue of the property, shall, after satisfying therefrom all costs incurred in consequence of the attachment, be delivered to him.

(4)

Where any shares in a company stand forfeited to the Government under this sub-section, then, the company shall, notwithstanding anything contained in the Companies Act, 1956 (

1 of 1956

), or the articles of association the company, forthwith register the Government as the transferee of such shares.

Part III ? Designated Courts

9.

Designated Courts

(1)

The Central Government or a State Government may, by notification in the Official Gazette, constitute one or more Designated Courts for such area or areas, or for such case or class or group of cases as may be specified in the notification.

(2)

Where a notification constituting a Designated Court for any area or areas or for any case or class or group of cases is issued by the Central Government under sub-section (1), and a notification constituting a Designated Court for the same area or areas or for the same case or class or group of cases has also been issued by a State Government under that sub-section, the Designated Court constituted by the Central Government, whether the notification constituting such Court is issued before or after the issue of the notification constituting the Designated Court by the State Government, shall have, and the Designated Court constituted by the State Government shall not have, jurisdiction to try any offence committed in that area or areas or, as the case may be, the case or class or group of cases, and all cases pending before any Designated Court constituted by the State Government shall stand transferred to the Designated Court constituted by the Central Government.

(3)

Where any question arises as to the jurisdiction of any Designated Court, it shall be referred to the Central Government whose decision thereon shall be final.

(4)

A Designated Court shall be presided over by a Judge to be appointed by the Central Government or, as the case may be, the State Government, with the concurrence of the Chief Justice of the High Court.

(5)

The Central Government or, as the case may be, the State Government may also appoint, with the concurrence of the Chief Justice of the High Court Additional Judges to exercise jurisdiction in a Designated Court.

(6)

A person shall not be qualified for appointment as a Judge or an Additional Judge of a Designated Court unless he is,

immediately before such appointment a Sessions Judge or an additional Sessions Judge in any State.

(7)

For the removal of doubts, it is hereby provided that the attainment by a person appointed as a Judge or an Additional Judge of a Designated Court of the age of superannuation under the rules applicable to him in the service to which he belongs, shall not affect his continuance as such Judge or Additional Judge.

(8)

Where any Additional Judge or Additional Judges is or are appointed in a Designated Court, the Judge of the Designated Court may, from time to time, by general or special order, in writing, provide for the distribution of business of the Designated Court among himself and the Additional Judge or Additional Judges and also for the disposal of urgent business in the event of his absence or the absence of any Additional Judge.

10.

Place of sitting

.An Designated Court may, on its own motion or on an application made by the Public Prosecutor, and if it considers it expedient or desirable so to do, sit for any of its proceedings at any place, other than its ordinary place of sitting:

Provided that nothing in this section shall be construed to change the place of sitting of a Designated Court constituted by a State Government to any place outside that State.

11.

Jurisdiction of Designated Courts

(1)

Notwithstanding anything contained in the Code every offence punishable under any provision of this Act or any rule made thereunder shall be triable only by the Designated Court within whose local jurisdiction it was committed or, as the case may be, by the Designated Court constituted for trying such offence under sub-section (1) of section 9.

(2)

If, having regard to the exigencies of the situation prevailing in a State, the Central Government is of the opinion that,

(a)

the situation prevailing in such State is not conducive to a fair, impartial or speedy trial, or

(b)

it is not likely to be feasible without occasioning the breach of peace or grave risk to the safety of the accused, the witnesses, the Public Prosecutor and the Judge of the Designated Court or any of them, or

(c)

it is not otherwise in the interests of justice,

it may, with the concurrence of the Chief Justice of India (such concurrence to be obtained on a motion moved in that behalf by the Attorney-General), transfer any case pending before a Designated Court in that State to any other Designated Court within that State or in any other State.

(3)

Where the whole or any part of the area within the local limits of the jurisdiction of a Designated Court has been declared to be, or forms part of, any area which has been declared to be a disturbed area under any enactment for the time being in force making provision for the suppression of disorder and restoration and maintenance of public order, and the Central Government is of opinion that the situation prevailing in the State is not conducive to fair, impartial or speedy trial within the State, of offences under this Act or the rules made thereunder which such Designated Court is competent to try, the Central Government may, with the concurrence of the Chief Justice of India, specify, by notification in the Official Gazette, in relation to such Court (hereafter in this sub-section referred to as the local Court) a Designated Court outside the State (hereinafter in this section referred to as the specified Court), and thereupon,

(a)

it shall not be competent, at any time during the period of operation of such notification, for such local Court to exercise any jurisdiction in respect of, or try, any offence this Act or the rules made thereunder;

(b)

the jurisdiction which would have been, but for the issue of such notification, exercisable by such local Court in respect of such offences committed during the period of operation of such notification shall be exercisable by the specified Court;

(c)



all cases relating to such offences pending immediately before the date of issue of such notification before such local Court shall stand transferred on that date to the specified Court;

(d)

all cases taken cognizance of by, or transferred to, the specified Court under clause (b) or clause (c) shall be dealt with and tried in accordance with this Act (whether during the period of operation of such notification or thereafter) as if such offences had been committed within the local limits of the jurisdiction of the specified Court or, as the case may be, transferred for trial to it under sub-section (2).

Explanation 1 .A notification issued under this sub-section in relation to any local Court shall cease to operate on the date on which the whole or, as the case may be, the aforementioned part of the area within the local limits of its jurisdiction, ceases to be a disturbed area.

Explanation 2 .For the purposes of this section Attorney-General means the Attorney-General of India or, in his absence, the Solicitor-General of India or, in the absence of both, one of the Additional Solicitors-General of India.

12.

Power of Designated Courts with respect to other offences

(1)

When trying any offence, a Designated Court may also try any other offence with which the accused may, under the Code, be charged at the same trial if the offence is connected with such other offence.

(2)

If, in the course of any trial under this Act of any offence, it is found that the accused person has committed any other offence under this Act or any rule made thereunder or under any other law, the Designated Court may convict such person of such other offence and pass any sentence authorised by this Act or such rule or, as the case may be, such other law, for the punishment thereof.

13.

Public Prosecutors

(1)

For every Designated Court, the Central Government or, as the case may be, the State Government, shall appoint a person to be the Public Prosecutor and may appoint one or more persons to be the Additional Public Prosecutor or Additional Public Prosecutors:

Provided that the Central Government or, as the case may be, the State Government, may also appoint for any case or class or group of cases a Special Public Prosecutor.

(2)

A person shall not be qualified to be appointed as a Public Prosecutor or an Additional Public Prosecutor or a Special Public Prosecutor under this section unless he has been in practice as an Advocate for not less than seven years or has held any post, for a period of not less than seven years, under the Union or a State, requiring special knowledge of law.

(3)

Every person appointed as a Public Prosecutor or an Additional Public Prosecutor or a Special Public Prosecutor under this section shall be deemed to be a Public Prosecutor within the meaning of clause (u) of section 2 of the Code and the provisions of the Code shall have effect accordingly.

14.

Procedure and powers of Designated Courts

(1)

A Designated Court may take cognizance of any offence, without the accused being committed to it for trial, upon receiving a complaint of facts which constitute such offence or upon a police report of such facts.

(2)

Where an offence triable by a Designated Court is punishable with imprisonment for a term not exceeding three years or with fine or with both, the Designated Court may, notwithstanding anything contained in sub-section (1) of section 260 or section 262 of the Code, try the offence in a summary way in accordance with the procedure prescribed in the Code and the provisions of sections 263 to 265 of the Code, shall, so far as may be, apply to such trial:

Provided that when, in the course of a summary trial under this sub-section, it appears to the Designated Court that the nature of the case is such that it is undesirable to try it in a summary way, the Designated Court shall recall any witnesses who may have been examined and proceed to re-hear the case in the manner provided by the provisions of

the Code for the trial of such offence and the said provisions shall apply to and in relation to a Designated Court as they apply to and in relation to a Magistrate:

Provided further that in the case of any conviction in a summary trial under this section, it shall be lawful for a Designated Court to pass a sentence of imprisonment for a term not exceeding two years.

(3)

Subject to the other provisions of this Act, a Designated Court shall, for the purpose of trial of any offence, have all the powers of a Court of Session and shall try such offence as if it were a Court of Session so far as may be in accordance with the procedure prescribed in the Code for the trial before a Court of Session.

(4)

Subject to the other provisions of this Act, every case transferred to a Designated Court under sub-section (2) of section 11 shall be dealt with as if such case had been transferred under section 406 of the Code to such Designated Court.

(5)

Notwithstanding anything contained in the Code, a Designated Court may, if it thinks fit and for reasons to be recorded by it, proceed with the trial in the absence of the accused or his pleader and record the evidence of any witness, subject to the right of the accused to recall the witness for cross-examination.

15.

Certain confessions made to police officers to be taken into consideration

(1)

Notwithstanding anything in the Code or in the Indian Evidence Act, 1872 ( 1 of 1872

), but subject to the provisions of this section, a confession made by a person before a police officer not lower in rank than a Superintendent of police and recorded by such police officer either in writing or on any mechanical device like cassettes, tapes or sound tracks from out of which sounds or images can be reproduced, shall be admissible in the trial of such person [or co-accused, abettor or conspirator]

[Inserted by Act 43 of 1993, Section 6 (w.e.f. 22.5.1993).]

for an offence under this Act or rules made thereunder:

[Provided that co-accused, abettor or conspirator is charged and tried in the same case together with the accused]

[Inserted by Act 43 of 1993, Section 6 (w.e.f. 22.5.1993).]

.

(2)

The police officer shall, before recording any confession under sub-section (1), explain to the person making it that he is not bound to make a confession and that, if he does so, it may be used as evidence against him and such police officer shall not record any such confession unless upon questioning the person making it, he has reason to believe that it is being made voluntarily.

16.

Protection of witnesses

[(1) Notwithstanding anything contained in the Code, the proceedings under this Act may be held in camera if the Designated Court so desires.]

[Substituted by Act 43 of 1993, Section 7, for sub-Section (1) (w.e.f. 22.5.1993).]

(2)

A Designated Court may, on an application made by a witness in any proceedings before it or by the Public Prosecutor in relation to such witness or on its own motion, take such measures as it deems fit for keeping the identify and address of any witness secret.

(3)

In particular, and without prejudice to the generality of the provisions of sub-section (2), the measures which a Designated Court may take under that sub-section may include,

(a)

the holding of the proceedings at a place to be decided by the Designated Court;

(b)

the avoiding of the mention of the names and addresses of the witnesses in its orders or judgments or in any records of the case accessible to public;

(c)

the issuing of any directions for securing that the identity and addresses of the witnesses are not disclosed;

(d)

that it is in the public interest to order that all or any of the proceedings pending before such a Court shall not be published in any manner.

(4)

Any person who contravenes any direction issued under sub-section (3) shall be punishable with imprisonment for a term which may extend to one year and with fine which may extend to one thousand rupees.

17.

Trial by Designated Courts to have precedence

.The trial under this Act of any offence by a Designated Court shall have precedence over the trial of any other case against the accused in any other Court (not being a Designated Court) and shall be concluded in preference to the trial of such other case and accordingly the trial of such other case shall remain in abeyance.

18.

Power to transfer cases to regular Courts

.Where, after taking cognizance of any offence, a Designated Court is of opinion that the offence is not triable by it, it shall, notwithstanding that it has no jurisdiction to try such offence, transfer the case for the trial of such offence to any Court having jurisdiction under the Code and the Court to which the case is transferred may proceed with the trial of the offence as if it had taken cognizance of the offence.

19.

Appeal

(1)

Notwithstanding anything contained in the Code, an appeal shall lie as a matter of right from any judgment, sentence or order, not being an interlocutory order, of a Designated Court to the Supreme Court both on facts and on law.

(2)

Except as aforesaid, not appeal or revision shall lie to any Court from any judgment, sentence or order including an interlocutory order of a Designated Court.

(3)

Every appeal under this section shall be preferred within a period of thirty days from the date of the judgment, sentence or order appealed from:

Provided that the Supreme Court may entertain an appeal after the expiry of the said period of thirty days if it is satisfied that the appellant had sufficient cause for not preferring the appeal within the period of thirty days.

Part IV ? Miscellaneous

20.

Modified application of certain provisions of the Code

(1)

Notwithstanding anything contained in the Code or any other law, every offence punishable under this Act or any rule made thereunder shall be deemed to be a cognizable offence within the meaning of clause (c) of section 2 of the Code, and cognizable case as defined in that clause shall be construed accordingly.

(2)

Section 21 of the Code shall apply in relation to a case involving an offence punishable under this Act or any rule made thereunder subject to the modification that the reference to the State Government therein shall be construed as a reference to the Central Government or the State Government.

(3)

Section 164 of the Code shall apply in relation to a case involving an offence punishable under this Act or any rule made thereunder, subject to the modification that the reference in sub-section (1) thereof to Metropolitan Magistrate or Judicial Magistrate shall be construed as a reference to Metropolitan Magistrate, Judicial Magistrate, Executive Magistrate or Special Executive Magistrate.

(4)

Section 167 of the Code shall apply in relation to a case involving an offence punishable under this Act or any rule made thereunder subject to the modifications that,

(a)

the reference in sub-section (1) thereof to Judicial Magistrate shall be construed as a reference to Judicial Magistrate of Executive Magistrate or Special Executive Magistrate;

(b)

the reference in sub-section (2) thereof to fifteen days, ninety days and sixty days, wherever they occur, shall be construed as references to sixty days, [one hundred and eighty days]

[Substituted by Act 43 of 1993, Section 8, for "one year" (w.e.f. 22.5.1993).]

and [one hundred and eighty days]

[Substituted by Act 423 of 1993, Section 8, for "one year" (w.e.f. 22.5.1993).]

, respectively; and

(bb)

[ in sub-section (2), after the proviso, the following proviso shall be inserted, namely:

[Inserted by Act 43 of 1993, Section 8 (w.e.f. 22.5.1993).]

Provided further that, if it is not possible to complete the investigation within the said period of one hundred and eighty days, the Designated Court shall extend the said period up to one year, on the report of the Public Prosecutor indicating the progress of the investigation and the specific reasons for the detention of the accused beyond the said period of one hundred and eighty days;]

(c)

sub-section (2-A) thereof shall be deemed to have been omitted.

(5)

Section 268 of the Code shall apply in relation to a case involving and an offence punishable under this Act or any rule made thereunder subject to the modifications that,

(a)

the reference in sub-section (1) thereof

(i)

to the State Government shall be construed as a reference to the Central Government or the State Government;

(ii)

to order of the State Government shall be construed as a reference to order of the Central Government or the State Government, as the case may be; and

(b)

the reference in sub-section (2) thereof, to State Government shall be construed as a reference to Central Government or the State Government, as the case may be.

(6)

Sections 366 to 371 and section 392 of the Code shall apply in relation to a case involving an offence triable by a Designated Court subject to the modifications that the references to Court of Session and High Court, wherever occurring therein, shall be construed as references to Designated Court and Supreme Court, respectively.

(7)

Nothing in section 438 of the Code shall apply in relation to any case involving the arrest of any person on an accusation of having committed an offence punishable under this Act or any rule made thereunder.

(8)

Notwithstanding anything contained in the Code, no person accused of an offence punishable under this Act or any rule made thereunder shall, if in custody, be released on bail or on his own bond unless

(a)

the Public Prosecutor has been given an opportunity to oppose the application for such release, and

(b)

where the Public Prosecutor opposes the application, the Court is satisfied that there are reasonable grounds for believing that he is not guilty of such offence and that he is not likely to commit any offence while on bail.

(9)

The limitations on granting of bail specified in sub-section (8) are in addition to the limitations under the Code or any other law for the time being in force on granting of bail.

[20-A. Cognizance of offence

[Inserted by Act 43 of 1993, Section 9 (w.e.f. 22.5.1993).]

(1)

Notwithstanding anything contained in the Code, no information about the commission of an offence under this Act shall be recorded by the police without the prior approval of the District Superintendent of Police.

(2)

No Court shall take cognizance of any offence under this Act without the previous sanction of the Inspector-General of Police, or as the case may be, the Commissioner of Police.]

21.

Presumption as to offences under section 3

(1)

In a prosecution for an offence under sub-section (1) of section 3, if it is proved,

(a)

that the arms or explosives or any other substances specified in section 3 were recovered from the possession of the accused and there is reason to believe that such arms or explosives or other substances of a similar nature, were used in the commission of such offence; or

(b)

that by the evidence of an expert the finger prints of the accused were found at the site of the offence or on anything including arms and vehicles used in connection with the commission of such offence.

[ - - ]

[Clauses (c) and (d) omitted by Act 43 of 1993, Section 10 (w.e.f. 22.5.1993).]

[ - - ]

[Clauses (c) and (d) omitted by Act 43 of 1993, Section 10 (w.e.f. 22.5.1993).]

(2)

In a prosecution for an offence under sub-section (3) of section 3, if it is proved that the accused rendered any financial assistance to a person accused of, or reasonably suspected of, an offence under that section, the Designated Court shall presume, unless the contrary is proved, that such person has committed the offence under that sub-section.

22.

Identification of accused

.Where a person has been declared a proclaimed offender in a terrorist case, the evidence regarding his identification by witnesses on the basis of his photograph shall have the same value as the evidence of a test identification parade.

23.

Saving

(1)

Nothing in this Act shall affect the jurisdiction exercisable by, or the procedure applicable to, any Court or other authority under any law relating to the naval, military or air forces or other armed forces of the Union.

(2)

For the removal of doubts, it is hereby declared that for the purposes of any such law as is referred to in sub-section (1), a Designated Court shall be deemed to be a Court of ordinary criminal justice.

24.

Saving as to orders

.Where an order purports to have been made and signed by any authority in exercise of any power conferred by or under this Act, a Court shall, within the meaning of the Indian Evidence Act, 1872 (

1 of 1872

), presume that such order was so made by that authority.

25.

Overriding effect

.The provisions of this Act or any rule made thereunder or any order made under any such rule shall have effect notwithstanding anything inconsistent therewith contained in any enactment other than this Act or in any instrument having effect by virtue of any enactment other than this Act.

26.

Protection of action taken under this Act

.No suit, prosecution or other legal proceeding shall lie against the Central Government or a State Government or any officer or authority of the Central Government or State Government or any other authority on whom powers have been conferred under this Act or any rules made thereunder, for anything which is in good faith done or purported to be done in pursuance of this Act or any rules made thereunder or any order issued under any such rule.

27.

Power of the Supreme Court to make rules

.The Supreme Court may, by notification in the Official Gazette, make such rules, if any, as it may deem necessary for carrying out the provisions of this Act relating to Designated Court.

28.

Power to make rules

(1)

Without prejudice to the powers of the Supreme Court to make rules under section 27, the Central Government may, by notification in the Official Gazette, make rules for carrying out the provisions of this Act.

(2)

In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:

(a)

regulating the conduct of persons in respect of areas the control of which is considered necessary or expedient and the removal of such persons from such areas;

(b)

the entry into, and search of,

(i)

any vehicle, vessel or aircraft; or

(ii)

any place, whatsoever,

reasonably suspected of being used for committing the offence referred to in section 3 or section 4 or for manufacturing or storing anything for the commission of any such offence;

(c)

conferring powers upon,

(i)

the Central Government;

(ii)

a State Government;

(iii)

an Administrator of a Union territory under article 239 of the Constitution;

(iv)

an officer of the Central Government not lower in rank than that of a Joint Secretary; or

(v)

an officer of a State Government not lower in rank than that of a District Magistrate,

to make general or special orders to prevent or cope with terrorist acts or disruptive activities;

(d)

the arrest and trial of persons contravening any of the rules or any order thereunder;

(e)

the punishment of any person who contravenes or attempts to contravene or abets or attempts to abet the contravention of any rule or order made thereunder with imprisonment for a term which may extend to seven years or for a term which may not be less than six months but which may extend to seven years or with fine or with imprisonment as aforesaid and fine;

(f)

providing for the seizure and detention of any property in respect of which such contravention, attempt or abetment as is referred to in clause (e) has been committed and for the adjudication of such seizure and detention, whether by any Court or by any other authority.

29.

Rules to be laid before Houses of Parliament

.Every rule made by the Central Government under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session, or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

30.

Repeal and saving

(1)

The Terrorist and Disruptive Activities (Prevention) Ordinance, 1987 (2 of 1987), is hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the said Ordinance shall be deemed to have been done or taken under the corresponding provisions of this Act.

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